

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 661

BY LOCAL GOVERNMENT COMMITTEE

AN ACT

RELATING TO SOLID WASTE DISPOSAL; AMENDING SECTION 31-4403, IDAHO CODE,
TO REVISE PROVISIONS REGARDING SOLID WASTE DISPOSAL SITE CONTRACTS IN
COUNTIES AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY
AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 31-4403, Idaho Code, be, and the same is hereby
amended to read as follows:

31-4403. OPERATION AND MAINTENANCE. (1) It shall be the duty of the
board of county commissioners in each of the several counties to acquire
sites or facilities, and maintain and operate solid waste disposal systems.
Such maintenance and operation may, by exclusive or nonexclusive means, be
performed through or by:

~~(1)~~ (a) Employees, facilities, equipment, and supplies hired by or ac-
quired by the board of county commissioners;
~~(2)~~ (b) Contracts, franchises, or otherwise, entered into by the board
to have the maintenance and operation performed by private persons;
~~(3)~~ (c) Contracts entered into by the board to have the maintenance and
operation performed by another unit of government;
~~(4)~~ (d) Contracts, franchises, or otherwise, granted pursuant to law by
the board, for all or any part or parts of the county; or
~~(5)~~ (e) Any combination of ~~subsections (1), (2), (3) and (4) of this~~
~~section, paragraphs (a), (b), (c), and (d) of this subsection.~~
~~(6)~~ (2) Notwithstanding any other provision of law to the contrary, in
order to provide for the public health, safety, and well-being, the board
of county commissioners ~~and/or~~ or another unit of state government, may de-
termine whether solid waste disposal systems services are to be provided by
means of a contract, franchise, or otherwise, ~~provided for under subsection~~
~~(2) pursuant to subsection (1) (b) of this section, or any contract, fran-~~
~~chise, or otherwise, awarded under subsection (4) pursuant to subsection~~
~~(1) (d) of this section, with or without compulsory competitive bidding.~~

(3) Notwithstanding any county contract or franchise for solid waste
collection to the contrary, any person may contract with a solid waste col-
lection provider of the person's choosing for the use of solid waste col-
lection containers that are temporary and project-specific, as defined by
county ordinance.

~~(7)~~ (4) The board of county commissioners, before entering into such
contracts, franchises, or otherwise, may require such security for the per-
formance thereof as it deems appropriate or may waive such undertaking.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.